

File No.: EXP202304100

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on February 20, 2023. The complaint is directed against LEE HECHT HARRISON, S.L. with NIF B62501325. The reasons for the complaint are as follows:

The claimant states that they were contacted by a recruiter from LEE HECHT HARRISON, S.L., the entity being complained about, through the social network LINKEDIN, requesting the submission of their Curriculum Vitae to present it to a company that might be interested. They indicate that they sent it, but at no time were they informed of any aspect regarding the processing of their data. They state that, after some time without receiving information about the outcome of the supposed hiring process, they attempted to contact the person who requested their data, unsuccessfully, which led them to leave a negative review of LEE HECHT HARRISON, S.L. on GOOGLE. They were then prompted to contact the entity being complained about via email, which they did, receiving a response from the recruiter stating that their Curriculum Vitae had been deleted and that it had not been delivered to the company to which it was supposed to be presented. The claimant contacted the data protection department of the entity being complained about, who informed them that the claimant's Curriculum Vitae was not included in the database of LEE HECHT HARRISON, S.L. and indicated that they had no record of such a document being shared with any company. The claimant believes they were contacted to improperly obtain their professional data and were not adequately informed about the processing of their data. They provide copies of messages exchanged with the recruiter from LEE HECHT HARRISON, S.L., with their data protection department, the review published on Google, and other reviews from other users, which highlight the practices carried out by the entity being complained about to obtain profiles and data from LinkedIn users.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to LEE HECHT HARRISON, S.L., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on April 3, 2023, as stated in the acknowledgment of receipt in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional copy was sent for informational purposes, which was duly notified on May 18, 2023.

No response has been received to this forwarding letter.

THIRD: On May 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity LEE HECHT HARRISON, S.L. is a medium-sized company established in 2000, with a business volume of (...) euros in 2022.

FIFTH: On February 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity being complained about, in accordance with the provisions

of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the entity being complained about submitted a written statement in which, in summary, they stated that:

- LEE HECHT HARRISON (LHH) activity is divided into four lines of business: LHH Career Transition & Mobility, LHH Leadership Development, LHH Advisory, and LHH Recruitment Solutions.
- The first three lines of business operate autonomously through the company LEE HECHT HARRISON, S.L., while the fourth and last, LHH RECRUITMENT SOLUTIONS (LHH R.S), carries out its activity through the company ATLAS SERVICIOS EMPRESARIALES, S.A.U.
- Regarding the specific case, contact with the claimant was made from LHH.R.S., as this was a contact aimed at the search and selection of intermediate profiles, which is why the company that carried out the activity was ATLAS SERVICIOS EMPRESARIALES, S.A.U., and in no case LEE HECHT HARRISON, S.L.
- The consultant who contacted the claimant was part of the staff of ATLAS SERVICIOS EMPRESARIALES, S.A.U., the general contracting conditions (hereinafter CCGG) that apply to their activity are signed and referenced by ATLAS SERVICIOS EMPRESARIALES, S.A.U., and the invoices for the activity of LHH.R.S. are issued by ATLAS SERVICIOS EMPRESARIALES, S.A.U., as well as the control, management, and direction of this specialty is also governed by the company.

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ATLAS SERVICIOS EMPRESARIALES, S.A.U and as proof thereof, attaches the employment contract of the consultant and the CCGG of the service.

SEVENTH: Attached as an annex is a list of documents in the procedure.

EIGHTH: On January 8, 2025, a resolution proposal was made in which a response was given to your written allegations regarding the initiation agreement of the sanctioning procedure, accepting them as valid, and proposing the closure of the file as it was considered that the responsibility for the processing activity subject to the complaint does not correspond to LEE HECHT HARRISON, S.L. since the consultant who contacted and sent the email that is the subject of the complaint to the complainant and to whom they submitted their CV is not an employee of this company.

NINTH: The proposal for resolution was notified on the same January 8, 2025, in accordance with the rules established in the LPACAP, and after the period granted for this purpose had elapsed, the complained party did not submit allegations.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The complainant was contacted through the social network LinkedIn on January 3, 2023, by B.B.B., and subsequently, on January 5, 2023, by the email ***EMAIL.1, whose signature footer is Consultant, Sales Industry LHH Recruitment Solutions, requesting the submission of their Curriculum Vitae for the purpose of managing interviews with interested companies offering job positions. In this email, it is not indicated who the recipients of the information are, the purposes of the processing to which the personal data are destined, nor the legal basis for the processing.

SECOND: The complainant sent their CV on January 9, and after more than a month without receiving any notification regarding the hiring process from either LHH Recruitment Solutions or the company offering the job position, on February 15, 2023, they sent another email to the consultant requesting confirmation that their data had been deleted from their databases in accordance with the law. On that same date, they received a response informing them that their CV had been deleted from the database and that it had never been forwarded to any of the companies in which the complainant was interested.

THIRD: The complainant received an email from proteccion.datos@adecco.com on February 15, 2023, informing them that their Curriculum Vitae is not included in the Adecco Group database and indicating that they have no record of that document being shared with any company.

FOURTH: The complainant filed a complaint with this Agency against the entity LEE HECHT HARRISON, S.L. for considering that it has inadequately collected their professional data and that they were not properly informed about the purpose of the processing that would be given to the data and without being given the option to exercise rights recognized in the GDPR.

FIFTH: On February 6, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity LEE HECHT HARRISON, S.L., for the alleged infringement of Article 13 of the GDPR.

SIXTH: LEE HECHT HARRISON, S.L., in its written allegations, provides the employment contract of B.B.B., signed by ATLAS SERVICIOS EMPRESARIALES, S.A.U., of the Adecco Group, to which the business line operating under the brand "LHH Recruitment Solutions" belongs, and whose activity is the search and selection of intermediate profiles. It also attaches the General Conditions of the contract linked to the brand "LHH Recruitment Solutions," which states: "LHH Recruitment Solutions is the commercial brand under which the legal entity of the services ATLAS SERVICIOS EMPRESARIALES, S.A.U., with CIF..."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Closure of the file

Article 4.7 of the GDPR defines the "data controller" or "controller" as the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and means of the processing, the data controller or the specific criteria for their appointment may be established by Union or Member State law.

After a thorough study of the documents in this file, it would be appropriate to close it in accordance with the basic principles of sanctioning law set forth in Law 40/2015, of October 1, on the Legal Regime of the Public Sector, which in its Article 28 "Responsibility" establishes:

1. Only natural and legal persons, as well as, when a law recognizes them the capacity to act, groups of affected individuals, unions, and entities without legal personality, may be sanctioned for acts constituting administrative infringement.

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independent or autonomous assets, which may be held liable for the same on the grounds of intent or negligence. (.../...).

In the present case, the responsibility for the processing activity subject to the complaint does not correspond to the respondent party, as it has been established in their employment contract that the consultant who contacted the complainant and collected their personal data was not employed by LEE HECHT HARRISON, S.L. Therefore, even if the facts constituted an infringement, it is not appropriate to issue a sanctioning resolution against this company.

Thus, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data

Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to LEE HECHT HARRISON, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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